

Personal Non-Disclosure Undertaking (“Undertaking”)

THE UNDERSIGNED:

Name: _____

Hereinafter referred to as “Recipient” or 接受方.

緣接受方於職務上有知悉或可得知悉或持有【台灣艾司摩爾股份有限公司 ASML Taiwan Ltd.、台灣艾司摩爾科技股份有限公司ASML Technology Taiwan Ltd.、台灣艾司摩爾股份有限公司台南分公司 ASML Taiwan Limited Tainan Branch、西盟科技股份有限公司 Cymer Southeast Asia Limited】(以下均簡稱「ASML」)及其關係企業機密資訊之機會，接收方負有保密之義務，同意訂定本承諾書，以昭信守：

WHEREAS

The Recipient has the opportunity to access to or possess certain Confidential Information of ASML Taiwan Ltd., ASML Technology Taiwan Ltd., ASML Taiwan Limited Tainan Branch, Cymer Southeast Asia Limited (each above referred to as “ASML” hereinafter) and/or its Associated Companies in the course of performing his/her job duties. To undertake the duty of confidentiality on the Recipient, the Recipient agrees as follows:

1. 本承諾書所稱之機密資訊係指 ASML 或其關係企業持有、收受或送發而具有秘密性和經濟上之利益之資訊(無論記錄於何儲存媒介)，包括但不限於：經營計劃、產銷計劃、採購計劃、新產品開發計劃、產品定價計劃、市場分析與競爭對手分析、模具圖式、開發中產品、電腦程式、資料庫、作業藍圖、工程設計圖、製造程序、製造方法、產品配方、產品規格、客戶資料、供應商資料、契約內容、不符專利要件之發明或創作、申請專利前之發明或創作、尚未公開或公告之發明或創作、專門技術、人事薪資資料、未對外公開之財務報表、自 ASML 或其關係企業所獲取第三人所有之機密資訊，以及其他標示秘密、公司機密、最高機密、限閱或其他同義字樣之資訊。

"Confidential Information" in this Undertaking is defined to mean any information possessed, received or sent by ASML or any of its Associated Companies (regardless of the media upon which such information is recorded) with confidential nature and economic value, including but not limited to business plans, production plans, purchase plans, product development plans, product pricing plans, market and competitor analyses, drawings, developing products, computer programs, databases, process blueprint, engineering design graphics, manufacturing processes, manufacturing methods, product formulas, product specifications, client data, supplier data, contracts, unpatentable innovation or creation, unpatented innovation or creation, undisclosed or unannounced innovation or creation, technical skills, personnel and remuneration information, undisclosed financial statements, any third party's confidential information received by ASML or its Associated Companies that is confidential to such third party, and any other information on which ASML or its Associated Companies indicate to be confidential, company secret, top secret, restricted or any equivalents.

2. 接受方同意其於 ASML 受雇期間及離職後，就 ASML 及其關係企業持有之機密資訊負有保密義務。接受方非經 ASML 及/或其關係企業之事前書面同意，不得以口頭、影印、借閱、交付、書面或以他法，洩漏機密資訊予任何人。亦不得為自己或第三人之利益，而使用該機密資訊。但機密資訊如已經公開或已成為公眾之公開知識者，則免除對該部份之保密義務。本承諾書所稱之「關係企業」係指符合以下條件之一的任何公司或主體：(1) 被 ASML 所控制，(2) 控制 ASML，或(3) 與 ASML 受相同公司或主體控制。本承諾書所稱之「控制」，係指對於一公司或法人主體，無論透過所有權、投票權、合約或其他方式，直接或間接擁有指揮該公司或法人主體之管理及政策之權利。

During and after the term of his/her employment with ASML, the Recipient agrees to hold the Confidential Information in his/her possession in confidence. Without prior written consent of ASML and/or the Associated Companies, the Recipient shall not in oral, in copy form, by lending, by delivering, in writing or by any other means disclose Confidential Information to anybody, nor shall the Recipient use the Confidential Information for his/her or any third party's interest; provided, however, the Recipient does not have the duty of confidentiality for any Confidential Information that is known to the public or becomes public knowledge. The term "**Associated Companies**" in this Undertaking is defined to mean any corporation, company, or entity which: (i) is Controlled by ASML; (ii) Controls ASML; or (iii) is under common Control with ASML. The term "Control" is defined to mean the possession, directly or indirectly, of the power to direct the management and policies of a company or other legal entity, whether through ownership or voting securities, by contract, or otherwise.

3. 接受方於離職或 ASML 提出請求時，應將所保管之任何物件及機密資訊，不論原件或影印本，一律返還，不得私自留存，其受請求返還時亦同。

Upon the termination of the employment with ASML or upon ASML's request, the Recipient shall return to ASML any item and Confidential Information, including the originals and their copies, in his/her possession and must not privately keep such item.

4. 接受方若違反本承諾書之規定，ASML 有權終止雙方之雇傭契約，並得請求賠償因此所受之損害或併追究接受方洩漏機密資訊之刑責。

In the event that the Recipient breaches any provision of this Undertaking, ASML is entitled to terminate the employment with the Recipient and request the Recipient to compensate for damages suffered therefrom or/and initiate criminal proceedings against the Recipient in connection with the divulge of Confidential Information.

5. 儘管有任何相反的規定，任何本承諾書之違約可能造成不可回復且嚴重之損害，且該損害無法以金錢彌補。因此，接收方同意當其違約時，ASML 除依法律或衡平法主張權利及救濟外，並有權向任何管轄權的法院請求禁制令或衡平法上之救濟。

Notwithstanding anything to the contrary, Recipient acknowledges that any breach of this Undertaking could cause irreparable harm and significant injury that monetary damages may be inadequate to remedy. Accordingly, Recipient agrees that upon its breach, the ASML is entitled to seek injunctive or equitable relief in any court of competent jurisdiction in addition to all other rights and remedies available at law or in equity.

6. 接受方因本承諾書所負之保密義務，不因與 ASML 之僱傭契約終止、撤銷、無效或不成立而失其效力。

The Recipient's obligations under this Undertaking will not be affected by the termination, revocation, invalidation or non-conclusion of the employment with ASML.

7. 本承諾書之條款，如為任何有權管轄之法院宣告為部份無效或無法執行，不影響其他條款之效力，其他條款仍繼續有效。

If any provision of this Undertaking is determined by a court having jurisdiction to be invalid or unenforceable, the remainder of this Undertaking shall not be affected and continue to be in full force and effect.

8. 本承諾書構成對ASML之完整及全部之承諾，並取代所有接受者在簽訂本承諾書前，與 ASML 所為之任何關於保密義務之口頭或書面協議。

This Undertaking constitutes the complete and entire promise to ASML and the Recipient, and supersedes any written or oral agreements in connection with the duty of confidentiality made between the Recipient and ASML prior to this Undertaking.

9. 本承諾書悉依台灣法律為解釋。凡與本承諾書而生之爭議，以台灣新竹地方法院為第一審管轄法院。

This Undertaking is governed by the laws of Taiwan. Any dispute in relation to this Undertaking shall be submitted to Taiwan Hsinchu District Court as the court of the first instance.

10. 本承諾書以中文及英文製成，若英文與中文版本衝突，應以英文為主。

This Undertaking is prepared in Chinese and English. In the event of inconsistency between the two versions, the English version shall govern.

立承諾書人：

簽名 (護照名): _____
Signature (Passport Name)

日期: _____
Date